

Court No. - 74

Case :- WRIT - C No. - 20048 of 2023

Petitioner :- Ashok @ Ashok Kumar

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Kamal Kumar Keshewani, Vinay Kumar Mishra

Counsel for Respondent :- C.S.C., Alok Mishra

Hon'ble Ashwani Kumar Mishra, J.

Hon'ble Ashutosh Srivastava, J.

It appears that petitioner's tube well connection has been disconnected on account of non deposit of electricity dues. Petitioner therefore has approached this Court challenging the electricity bill and a prayer has also been made to consider his representation and permit him to pay the admitted dues in easy installments. It has also been prayed that petitioner's name be mutated in electricity records as his father has died, in whose name the electricity connection stood earlier.

Sri Anuj Kumar Mishra holding brief of Sri Alok Mishra, learned counsel for the respondents (electricity board) states that such grievance of the petitioner can more appropriately be examined under clause 6.5 of the electricity supply code 2005. Disputed questions, therefore, need not be examined by this Court directly in writ proceedings.

We find substance in the objections raised on behalf of the respondents and since the petitioner has not availed of the remedy available in law, as such we decline to entertain the writ petition directly against the electricity bill.

In the facts of the case, the petitioner is permitted to approach the concerned respondents by virtue of clause 6.5 and it goes without saying that all issues raised by the petitioner shall be duly addressed in such proceedings, in accordance with law.

Subject to the observations made above this petition is consigned to records.

Order Date :- 12.6.2023

Vipul